

Court No. - 21

Case :- WRIT - C No. - 16872 of 2023

Petitioner :- Mohammad Shahvez

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ajeet Srivastava, Mahendra Singh

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. Sri N.K. Tiwari, learned counsel for the respondent-bank, prays for and is granted time to obtain instructions.
2. List as fresh on 23.5.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 18.5.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 16872 of 2023

Petitioner :- Mohammad Shahvez

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ajeet Srivastava, Mahendra Singh

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. Shri N.K. Tiwari, learned counsel for the respondent-Electricity Department prays for and is granted two days further time to complete his instructions.
2. Put up as fresh on 26.05.2023.
3. Till then, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery proceedings.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 23.5.2023

Rama Kant

Court No. - 21

Case :- WRIT - C No. - 16872 of 2023

Petitioner :- Mohammad Shahvez

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ajeet Srivastava, Mahendra Singh

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. Sri N.K. Tiwari, learned counsel for the respondent-Electricity Department, prays for and is granted three days further time to complete his instructions.
2. List as fresh on 30.5.2023.
3. The interim order is extended till the next date of listing.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 26.5.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 16872 of 2023

Petitioner :- Mohammad Shahvez

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ajeet Srivastava, Mahendra Singh

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. Shri N.K. Tiwari, learned counsel for the respondent electricity department submits that the matter be taken up tomorrow to enable him to complete his instructions.
2. Put up as fresh **tomorrow** i.e. 31.05.2023.
3. Interim order, if any, is extended till the next date of listing.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 30.5.2023

S.P.

Court No. - 21

Case :- WRIT - C No. - 16872 of 2023

Petitioner :- Mohammad Shahvez

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ajeet Srivastava, Mahendra Singh

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. The instant petition has been filed challenging the recovery citation dated 02.01.2023 issued by respondent no.5 for recovery of a sum of Rs.22,36,475/- from the petitioner on basis of an order of final assessment.
2. Learned counsel for the respondent electricity department, Sri N.K. Tiwari states that the impugned recovery has been withdrawn and that the respondents will pass a fresh order after providing opportunity of hearing to the petitioner.
3. Accordingly, the instant petition is disposed of with liberty to the respondents to pass fresh order strictly in accordance with the procedure prescribed in Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.5.2023

S.P.